

2. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: RECONSIDER ORDER GRANTING MOTION TO QUASH DEPOSITION
SUBPOENA DIRECTED TO MCAFEE CORPORATION
FILED BY: SAN RAMON REGIONAL MEDICAL CENTER
TENTATIVE RULING:

The court clarifies its May 13, 2025 order. Defendant may serve a more narrowly tailored subpoena relating to Plaintiff's prior employment without obtaining leave of the court. However, if Plaintiff seeks to serve the same subpoena Plaintiff must seek leave of the court explaining the good cause that exists to serve the same subpoena the court previously found to be overbroad.

3. 9:00 AM CASE NUMBER: C24-02137
CASE NAME: PETITION OF: DEREK WAGLEY
*HEARING ON MOTION IN RE: AND MPA FOR ASSIGNMENT OF RIGHTS UNDER CCP 708.510; DEC
OF JUDGMENT CREDITOR
FILED BY:
TENTATIVE RULING:

Granted.

4. 9:00 AM CASE NUMBER: C25-00901
CASE NAME: MOUNICA AITHA VS. VINOD PASPUNOORI
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: PASPUNOORI, VINOD
TENTATIVE RULING:

Continued by the Court to January 30, 2026.

5. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
HEARING IN RE: MOTION FOR RECONSIDERATION & TO VACATE TRO ORDER
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Wilton Short's Motion for Reconsideration ("Motion").

Plaintiff's Motion is **denied** for the reasons set forth below.

Procedural Timeline

Before filing his Complaint in this Court, Plaintiff filed Complaint with the substantially the same facts and the exact same parties in the Federal Northern District Court of California. Plaintiff alleged nine causes of action for (1) The Federal Fair Debt Collection Practices Act; (2) Regulation X (Real Estate Settlement Procedures Act) and Regulation Z (Truth in Lending Act); (3) Gramm-Leach-Bliley Act; (4) Real Estate Settlement Procedures Act, and California Civil Code Sections 2924 and 2924b; (5)

Regulation X (12 CFR 1024.41) and California Homeowner Bill of Rights (HBOR), California Civil Code § 2923.7; (6) 12 CFR § 1026.41 of Regulation Z (Truth in Lending Act); (7) Regulation X (12 CFR 1024.41) and California Civil Code § 2923.6; (8) Dodd-Frank Wall Street Reform and Consumer Protection Act; and (9) Real Estate Settlement Procedures Act (RESPA). On November 12, 2024, Plaintiff filed his initial Complaint in Federal Court. Plaintiff already tried to obtain a TRO/Injunction in the Federal Action, which was denied on April 8, 2025, based on different causes of action than what Plaintiff is moving on for this instant motion for Preliminary Injunction.

On May 15, 2025, Plaintiff filed a First Amended Complaint. Plaintiff has not only added more cause of action to the FAC but Plaintiff has also made the FAC verified. The FAC alleges eleven causes of action for (1) Wrongful Foreclosure; (2) Quiet Title; (3) Cancellation of Instruments; (4) Fraudulent Substitution of Trustee; (5) Violations Of Civil Code § 2924 Et Seq; (6) Invasion of Privacy; (7) Fraud and Misrepresentation; (8) Unfair Business Practices; (9) Conspiracy to Commit Fraud/Wrongful Foreclosure; (10) Civil Theft (Receiving Stolen Property); and (11) Declaratory and Injunctive Relief.

On May 30, 2025, Plaintiff filed an Ex Parte Application for Temporary Restraining Order. The Court did not rule on the Ex Parte relief but did set an Order to Show Cause to show why a Preliminary Injunction should not be granted for July 18, 2025.

On July 18, 2025, at the first Order to Show Cause to show why a Preliminary Injunction should not be granted, this Court granted Plaintiff a TRO because the Court was uncomfortable granting a Preliminary Injunction without the issues being fully briefed on the merits. The Court granted the TRO based off Plaintiff meeting his initial burden and Defendants' in effect non-opposition because Defendants argued that this Court should deny Plaintiff request based on the Federal Court's denial of a Preliminary Injunction on substantially different grounds.

On October 3, 2025, at the second Order to Show Cause to show why a Preliminary Injunction should not be granted, this Court denied Plaintiff a PI and dissolved the TRO to stop the sale of Plaintiff's property. The Court granted the TRO based off Plaintiff having frequent contact with Defendant Franklin showing Plaintiff knew or should have known that Defendant Franklin was the successor in interest to Cal State 9 for the subject loan and that the subject loan was not closed out or refinanced because Plaintiff took out withdrawals on the loan. The Court filed and mailed notice of the order after hearing on October 9, 2025.

Factual History

On December 12, 2008, an Abstract of Judgment was recorded by Judgment Creditor with the Contra Costa County Recorder's Office. (SRC MPA APPLICATION FOR ORDER FOR SALE OF DWELLING at p. 2: 3-4.)

On April 3, 2018, Application and Notice of Renewal of Judgment was recorded with the Contra Costa County Recorder's Office. (SRC MPA APPLICATION FOR ORDER FOR SALE OF DWELLING at p. 2: 5-6.)

The alleged Transmutation Agreement was executed on May 1, 2006, notarized on May 20, 2024, and recorded with the Contra Costa Recorder's Office on May 21, 2024. (SUPP OBJ BRIEF AND OPPO TO LEVY at Exh. B.)

Standard of Review

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may,

“based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

Timeliness

Plaintiff’s Motion is timely. The Order denying Plaintiff’s Motion for a Preliminary Injunction was served by this Court by mail on October 9, 2025. If notice is made by mail within California, the notice period shall be increased by five calendar days. (CCP § 1005(b).) Thus, the ten days to file a reconsideration motion did not start counting until October 15, making Plaintiff’s deadline to file his motion for reconsideration October 25, 2025. Plaintiff filed his Motion for Reconsideration of this on October 22, 2025, rendering it timely.

New Evidence Does Not Change the Court’s Decision

First, Plaintiff’s DFPI argument is unavailing. The California Debt Collection Licensing Act contains several exclusions from both its licensing obligation and the Act’s substantive provisions. Notably, the Act excludes from its scope, depository institutions, which is defined to include FDIC-insured out-of-state state-chartered banks, licensees under the California Financing Law, licensees under the California Residential Mortgage Lending Act, licensees under the California Real Estate Law, and a trustee performing acts in connection with a nonjudicial foreclosure, among others. (Fin. Code §§ 28000 *et seq.*) Here, Defendants would meet the exclusions for licensees under the California Financing Law, licensees under the California Residential Mortgage Lending Act, licensees under the California Real Estate Law, and a trustee performing acts in connection with a nonjudicial foreclosure.

Second, the paperwork suggesting that a refinance took place does not sway the Court. Even if is taken as true that the refinance took place, Defendant’s Research Administrator Eric Steege responded to Plaintiff’s request for validation of debt with a letter dated November 5, 2024, which provided the operative loan documents as well as a loan history showing that the loan has never been paid off, and that 25 draws were taken on the after the time that the loan was purportedly paid in full between May 23, 2007, and February 11, 2008. (Steege Decl. ¶15, Ex G.) Even if a refinance did take place, Plaintiff would still owe Defendant the money that he withdrew 25 times from May 23, 2007, to February 11, 2008.

Third, the fact Defendant Bosco Credit LLC defaulted in a seemingly related federal action does not have any preclusive effect on this litigation since nothing was decided on the merits.

Conclusion

Plaintiff's Motion for Reconsideration is **denied**.

6. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JASON W. ESTAVILLO
FILED BY: BLASS, AUGUST
TENTATIVE RULING:

The motion to be relieved as counsel is granted and shall be effective upon the filing of the proof of service of the signed order upon the client.

7. 9:00 AM CASE NUMBER: C25-01488
CASE NAME: JACQUELINE NAMPEERA VS. CMG MORTGAGE, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: CMG MORTGAGE, INC.
TENTATIVE RULING:

Introduction

Before the Court is Defendant CMG Mortgage, Inc.'s (CMG or Defendant) Motion To Compel Plaintiff Jacqueline Nampeera's individual claims to binding arbitration and stay this civil action until arbitration is complete. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

Supplemental Briefing

This motion was first heard on December 5, 2025, in Department 18 of the Contra Costa Superior Court, the Honorable Danielle Douglas, presiding. Karen Gold appeared for Plaintiff while Sarju A. Naran appeared for Defendant.

Plaintiff argued at the hearing that Defendant brought new evidence in its Reply papers and declarations and stated it would be unfair for Plaintiff not to have the opportunity to brief the new evidence. The Court agreed and granted the Parties the opportunity for supplemental briefing Defendant's new evidence brought up its reply papers.

EFAA Does Not Apply Despite the Ruling in Plaintiff's RJN Ex. 1

Plaintiff posits that the ruling made in Department 16 in Contra Costa County Case No. C25-01575 forwards the proposition that Plaintiff's allegations have alleged a combination of gender and racial harassment as defined by the EFAA. Taking a closer look at the order, it is not the case.

In the Prevost v CMG Mortgage, Inc (Plaintiff's RJN Ex. 1) case, the argument forwarded by Defendant was that the EFAA did not apply because Plaintiff failed to allege severe and pervasive harassment that was not sexual in nature. Here, the argument asserted by Defendant is that Plaintiff failed to adequately allege a gender discrimination or harassment cause of action. (Reply at p.5: 18-28.)